

9. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. DOES 1 TO 20
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Before the Court is the Defendant's Demurrer, filed April 20, 2026, to the Plaintiffs' First Amended Complaint. Hearing was set for September 11, 2026. Plaintiffs' Opposition pleadings were due August 28, 2026, due 9 (nine) court days in advance of hearing. (CCP 1005) Defendants filed their Opposition on September 1, 2026, seven court days in advance of the hearing.

Plaintiffs offer no explanation for their tardy submission. Defendants filed a timely Reply Memorandum objecting to the tardy submission, citing *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252, 262 and Cal. Rules of Court 3.1300(d). Reply, filed September 3, 2026, at 2. Defendants note that this is the second time the Plaintiffs have missed a deadline to file an opposition to a demurrer.

The Court has broad discretion to accept or reject papers filed after the applicable deadline absent a prior order finding good cause for the late submission. (See Cal. Rules of Court, Rule 3.1300(d); see also *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252, 262-263; *Samaniego v. Empire Today LLC* (2012) 205 Cal. App. 4th 1138,1146; see also *Shadle v. City of Corona* (1979) 96 Cal.App.3d 173, 178-179 ["The requirement that opposing papers be filed a reasonable time in advance of the hearing helps to ensure that the court and the parties will be familiar with the facts and the issues so that meaningful argument can take place and an informed decision rendered at the earliest convenient time."].)

Here no prior order finding good cause for the late submission has been made. Plaintiffs made no attempt to explain their tardiness in their papers. The court will not accept repeated disregard of the court rules.

The demurer is **sustained**, with leave to amend. The Plaintiffs shall file their amended Complaint within 15 days of service of notice of entry of this order.

10. 9:00 AM CASE NUMBER: C25-01680
CASE NAME: ERROL USHER VS. ERIC BAEBLER
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ENVENT CORPORATION
TENTATIVE RULING:

The Court continues the hearing on its own motion to October 2, 2026, at 9:00 a.m.

11. 9:00 AM CASE NUMBER: C25-02069
CASE NAME: MATEO TZI TZUL VS. RAYMOND CAMILLUS CLAVIN
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ANGELA F. STOREY, ESQ.(ADVANCED FROM 10/30/2026 - SEE M/O OF 7/13/2026)**
FILED BY: TZI TZUL, MATEO
TENTATIVE RULING:

The unopposed motion of **Angela Storey, SBN 217942**, to be relieved as counsel for **Plaintiff Mateo Tzi Tzul** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. § 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff Mateo Tzi Tzul's** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will execute and file the Proposed Order lodged June 9, 2026, Granting Attorney **Angela Storey's** Motion to be Relieved as Counsel (Judicial Council Form MC-053), and listing the appropriate next dates scheduled in the case.

The next date in this case is a Case Management Conference set for December 1, 2026, at 8:30 a.m. in Dept. 32.

The withdrawal is effective upon attorney **Angela Storey's** filing proof of service of signed order on **Plaintiff Mateo Tzi Tzul** and all parties.

12. 9:00 AM CASE NUMBER: C25-02517
CASE NAME: DANVILLE LIVERY & MERCANTILE ASSOCIATES, VS. ASHLEE MORTON
***HEARING ON MOTION IN RE: SET ASIDE AND VACATE DEFAULT**
FILED BY: MORTON , ASHLEE
TENTATIVE RULING:

The parties have stipulated to a continuance of the hearing. The hearing shall be continued to January 22, 2027, at 9:00 a.m. in Dept. 40, Hon. Christopher Bowen.

Parties to take notice that effective January 4, 2027, this case shall be assigned for all purposes to Hon. Christopher Bowen.